

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS, DECLARE COM. PROPERTY;
ENFORCE ORDERED SPOUSAL SUPPORT ORDERS, (MORE)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 2/10/26, Respondent filed a Request for Order seeking \$7,500 in attorney's fees, enforcement of spousal support and "lump-sum payments" ordered by the Court, sanctions, and "a finding of perjury". The Court notes section 8(a) – 8(c) are completed on form FL-300 (Request for Order); however, Respondent did not check the section 8 box, "Time for Service/ Time Until Hearing" or the "Temporary Emergency Orders" box in the caption of the form. Respondent concurrently filed a declaration entitled Request for a Long-Cause Hearing, a Memorandum of Points and Authorities, and a declaration entitled Declaration in Support of An Order Shortening Time. The matter was set for hearing on the Court's regular calendar on 4/30/26.
- 3) There is no Proof of Service on file indicating Respondent's 2/10/26 Request for Order and supportive pleadings were served on Petitioner.
- 4) Petitioner did not file a Responsive Declaration.

1 5) On 4/16/26, counsel Petitioner filed a Substitution of Attorney indicating Petitioner is now self-
2 representing.

3 6) At the prior 4/30/26 hearing, the Court continued the matter to 6/16/26 for lack of service.

4 7) There is still no Proof of Service on file indicating Respondent's 2/10/26 Request for Order and
5 supportive pleadings were served on Petitioner.

6 **B. Findings and Order**

7 1) Given that Respondent was previously provided additional time to effectuate proper service and
8 failed to do so, the Court finds good cause to DENY Respondent's Request for Order filed
9 2/10/26 without prejudice (i.e., Respondent may refile).

10 2) The Court will prepare the Findings and Order After Hearing.